

of the testator, but which arose subsequently out of obligations entered into by him, that a very liberal term ought to be allowed for the exercise of the power of sale (*b*). [The Court of Appeal has, however, recently expressed an opinion that twenty-seven years is too long a period, and laid down the rule that for a period of twenty years from the testator's death a purchaser should not be bound or entitled to ascertain whether the debts were paid, but that after the lapse of that period it is fair to presume that the debts have been paid and the purchaser is bound to enquire (*c*), and this rule has been followed in Ireland (*d*).]

11. **Power of signing receipts a question of intention at the date of the instrument.** — As the exemption of the purchaser from seeing to the application of the purchase-money depends as a general rule upon the settlor's *intention*, the question must be viewed with reference to the date of the instrument, and not as affected by circumstances which have subsequently transpired (*e*). Thus, if a trust be created for payment of debts and legacies, and the trustees, after full payment of the debts contract for the sale of the estate, the purchaser will not, upon this principle, be bound to see to the application of the money in payment of the legacies (*f*).

12. **Forbes v. Peacock.** — In *Forbes v. Peacock* (*g*), a testator directed his *debts to be paid*, and gave the estate to his wife (whom he appointed his executrix) for life, subject to his debts and certain legacies, and *empowered* her to sell the estate in her lifetime, and *directed* that if it were not sold in her lifetime, it should be *sold at her death* and the proceeds applied in a manner showing that they were intended to pass through the hands of the *executors*, and the testator requested certain persons to act as *executors* and *trustees* with his wife. The widow lived twenty-five years, and after her

(*b*) *Ib.* 560.

[(*c*) *Re Tanqueray-Willame and Landau*, 20 Ch. D. 465.]

[(*d*) *Re Molyneux and White*, 13 L. R. Ir. 382.]

(*e*) See *Balfour v. Welland*, 16 Ves. 156; *Johnson v. Kennett*, 3 M. & K. 631; *Eland v. Eland*, 4 M. & Cr. 428.

(*f*) *Johnson v. Kennett*, 3 M. & K. 624, reversing S. C. 6 Sim. 384; *Eland v. Eland*, 4 M. & Cr. 420; *Page v. Adam*, 4 Beav. 269; *Stroughill v. Anstey*, 1 De G. M. & G. 635.

(*g*) 11 Sim. 152; 12 Sim. 528; 11 M. & W. 637; 1 Ph. 717; see *Stroughill v. Anstey*, 1 De G. M. & G. 650.